

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
JAMEL YOUNG,

Plaintiffs,

-against-

THE CITY OF NEW YORK and THE NEW YORK CITY
POLICE DEPARTMENT, PO PECORELLA. ROBERT, and
NYPD OFFICERS JOHN DOE 1-5, THE DEPARTMENT
OF CORRECTIONS OF THE CITY OF NEW YORK and
CORRECTIONS OFFICERS 1-5

Defendants.
-----X

INDEX

**VERIFIED
COMPLAINT**

The plaintiff, complaining of the defendants, by his attorney, David Blum, of DAVID
BLUM AND ASSOCIATES, respectfully shows to this Court, and alleges:

PARTIES

1. That the plaintiff is a resident of the City of Rex, State of Georgia.
2. Upon information and belief, that at all times hereinafter mentioned,
the defendant CITY OF NEW YORK, was and still is a municipal corporation duly
organized and existing under and by virtue of the laws of the State of New York.
3. Upon information and belief, that at all times hereinafter mentioned,
the defendant CITY OF NEW YORK, its agents, servants, and employees operated,
maintained and controlled the Police Department of the City of New York, including all
the police officers thereof.
4. Upon information and belief, that at all times hereinafter mentioned,
and on or prior to the 24th day of March 2019, PO PECORELLA. ROBERT Shield No.

18446, and NYPD Officers Jon Doe 1-5 were employed by the defendant, the CITY OF NEW YORK, as police officers.

5. Each and all of the acts of the defendants, alleged herein were done by the defendants, their agents, servants and employees, and each of them, not as individuals, but under the color and pretense of the statutes, ordinances, regulations, customs and usages of the State of New York, the City of New York, and under the authority of their office as police officers of said state, county and city.

CONDITIONS PRECEDENT

6. That Notice of the Plaintiffs' Claim and Notice of Intention to Sue for Damages for personal injuries, emotional injury, psychological injury, associated pain and suffering, medical expenses, embarrassment, and humiliation, violation of civil rights, negligence in hiring and retaining, negligence in performance and negligence in training and supervising, the nature of the claim and the date of, the time when, the place where and the manner in which the claim arose was duly served upon the Comptroller of the defendant CITY OF NEW YORK within 90 days after the occurrences alleged hereinafter.

7. That a 50-H hearing has was held on April 2, 2020 pursuant to Sec. 50-H of the General Municipal Law.

8. That more than thirty days have elapsed since the Notice of Claim and Intention to Sue has been served upon the defendants and the said defendants have neglected or refused to make any adjustment or payment thereof.

9. That this action is commenced within one year and ninety days after the cause of action arose.

FACTS

10. That on or about the Twenty Ninth day of March, 2019 at about 12:30a.m. plaintiff who had earlier arrived in the Bronx to stay at a friend's house for the weekend while visiting from GA, was stopped by the NYPD at Foley St. and 165th Street.

11. Plaintiff was informed that he was pulled over for not having a license plate light.

12. Incident to the stop, plaintiff was questioned by officers of the NYPD.

13. plaintiff fully cooperated during questioning, and truthfully answered all their questions.

14. Plaintiff was asked if he had any weapons in the car, and he responded that he had brought his registered weapon with him from Georgia, and that It was either in one of the bags in the car or one of the bags that had already been taken out.

15. Plaintiff was told, presumably based upon his answers to the NYPD that he was being placed under arrest.

16. Immediately upon learning that he was to be arrested plaintiff informed all the officers within earshot that he was transgender for his own protection.

17. The officer's expressions and demeanors plainly displayed annoyance, disbelief, and confusion.

18. Plaintiff, who was handcuffed and standing by the police cruiser was briefly questioned as to the nature of his transgender status by several of the officers.

19. Plaintiff responded that he had been born female and had transitioned to male.

20. After a moment in which the plaintiff could hear the officers joking amongst themselves, a male officer approached plaintiff and aggressively began to perform a search of the plaintiff's body.

21. During his "search" the NYPD officer aggressively grabbed the plaintiff's crotch and chest clearly in an attempt to ascertain the nature of the plaintiff's genitals and whether he had breasts.

22. After his humiliating and sexually violent groping of the plaintiff's genitals, the NYPD officer returned to his brethren where plaintiff again heard them joking amongst themselves about the search.

23. Plaintiff was thereafter placed into an NYPD vehicle and transported to a New York City police precinct.

24. When he arrived in the precinct plaintiff again plainly heard the officers involved in his arrest joking amongst themselves and other officers about the nature of his gender.

25. During his processing and arrest, plaintiff was misgendered numerous times, alternately being referred to as he, she, her, him, miss and sir.

26. During his processing by members of the NYPD plaintiff was searched by male officers.

27. After numerous hours in the holding cell Plaintiff was transferred to central booking.

28. Prior to being taken to central booking before being placed in the cruiser for transport plaintive was again sexually assaulted by an NYPD officer under the guise of performing a search.

29. When he arrived at central booking plaintiff was placed in a cell with numerous male prisoners, despite the clear and unequivocal knowledge of the arresting officers that plaintiff was transgender.

30. After several hours at central booking plaintiff needed to call one of the NYPD officers to request to use the bathroom.

31. Understanding the grave peril, he was in plaintiff waited until his case was called before informing the officers that he could not use the bathroom in the cell.

32. Once again plaintiff was required to explain is gender to the officer as an explanation for why he could not use the bathroom in the cell, causing the officer to react with annoyance, and to loudly request the assistance of another officer.

33. After appearing it before the judge and being arraigned plaintiff was informed that he would be taken to "the boat".

34. When plaintiff asked his legal aid attorney how the Department of Corrections would ensure his safety from other male inmates as they had failed to do at central booking, he was informed by his attorney that he would have to tell the officers with the Department of Corrections on the boat that he was a female, "because they don't know what to do with you".

35. Plaintiff was handcuffed to a male prisoner and kept in a holding cell on the boat with other male prisoners.

36. During that entire period plaintiff feared for his life and safety because he did not know whether the other prisoners were aware of his transgender identity.

37. Once he arrived at the boat plaintiff was told to change his clothes.

38. Plaintiff requested a pencil and a piece of paper which he used to write a note to inform the corrections officers that he was transgender.

39. Notwithstanding that information plaintiff was still compelled to be Partially strip searched by a male officer.

40. Plaintiff was thereafter placed in a cell by himself directly across from a holding cell with numerous other male inmates.

41. At one point While in one of the several cells that plaintiff was put into, he was approached by a trustee, who began to question him about why he was by himself, asking numerous inappropriate and personal questions of the plaintiff.

42. When plaintiff was taken from his cell to be examined by the medical staff the nurse who was examining him made comments about his appearance his gender and the fact that she considered him sexy and attractive, commenting about his body and about his nose clearly sexualizing him in an inappropriate manner.

43. the plaintiff was compelled to appear before a Judge of the Criminal Court of the City of New York, County and to be arraigned.

44. That by reason of the foregoing, plaintiff was subjected to great indignities, humiliation, and ridicule, and did suffer great emotional and psychological harm.

FIRST CAUSE OF ACTION
NEGLIGENT HIRING AND RETENTION

45. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1. through 46. with the same force and effect as if more fully and at length set forth herein.

46. That the defendant, THE CITY OF NEW YORK, was careless and reckless in hiring and retaining as and for its employee, the above named individual; in that at the said defendant lacked the experience, department and ability to be employed by the defendant; in that the defendants failed to exercise due care and caution in its hiring practices, and in particular, in hiring the defendant employee who lacked the mental capacity and the ability to function as an employee of the aforementioned defendant; in that the defendant, the CITY OF NEW YORK failed to investigate the above named defendant's background and in that they hired and retained as an employee of their police department an individual who lacked the maturity, sensibility and intelligence to be employed when they hired him to be an employee; and, in that the defendants, their agents, servants and employees were otherwise careless, negligent and reckless.

47. That the aforesaid occurrence, to wit: the misgendering, sexual assault and failure to provide reasonable accommodations, and violations of State and Municipal law and the resulting injuries to plaintiff therefrom, were caused wholly and

solely by reason of the negligence of the defendant, its agents, servants and employees without any negligence on the part of the plaintiffs.

48. That by reason of the aforesaid, the plaintiff was caused to suffer violations of his civil rights, shame, fear, humiliation, and great emotional and mental distress and harm and still suffers and upon information and belief, will continue to suffer great mental pain in the future, and has expended sums of money in an effort to treat himself of said injuries and to extricate himself from the indignities and humiliation foisted upon him by the action of the defendants, their agents, servants and employees, and upon information and belief, will expend further sums in that direction, and that the plaintiff has been otherwise damaged.

49. That by reason of the aforesaid, the plaintiff as been damaged in an amount in excess of the jurisdictional amounts of all lower courts.

SECOND CAUSE OF ACTION
NEGLIGENT TRAINING AND SUPERVISION

50. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1. through 50. with the same force and effect as if more fully and at length set forth herein.

51. That the defendant's, their agents servants and employees negligently, carelessly and recklessly failed to properly train and supervise their employees, in particular the named defendants, in that they failed to train their employees; in the proper method to exercise proper deportment and temperament; and to otherwise act as reasonably, prudent police officers; failed to give them proper instruction as to their deportment, behavior and conduct as representatives of their

employers; and, in that the defendants, their agents, servants and employees were otherwise reckless, careless and negligent.

52. That the aforesaid occurrence, to wit: the misgendering, sexual assault and failure to provide reasonable accommodations, and violations of State and Municipal law resulting injuries to mind and body therefrom, were caused wholly and solely by reason of the negligence of the defendant, its agents, servants and employees without any negligence on the part of the plaintiffs.

53. That by reason of the aforesaid, the plaintiff was caused to suffer violations of his civil rights, shame, fear, humiliation, and great emotional and mental distress and harm and still suffers and upon information and belief, will continue to suffer great mental pain in the future, and has expended sums of money in an effort to treat himself of said injuries and to extricate himself from the indignities and humiliation foisted upon him by the action of the defendants, their agents, servants and employees, and upon information and belief, will expend further sums in that direction, and that the plaintiff has been otherwise damaged.

54. That by reason of the aforesaid, the plaintiff has been damaged in an amount in excess of the jurisdictional amounts of all lower courts.

THIRD CAUSE OF ACTION
VIOLATIONS OF FEDERAL STATE AND LOCAL
HUMAN RIGHTS LAWS

55. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1. through 55. with the same force and effect as if more fully and at length set forth herein.

56. New York's sex discrimination laws prohibit discrimination based on gender stereotypes or because an individual has transitioned or intends to transition

from one gender to another. This legislation is intended to codify this principle and to ensure that the public understands that discrimination on the basis of gender identity and expression is prohibited.

57. That the actions of the Defendants in negligently, and intentionally ridiculing the plaintiff, misgendering the plaintiff, in subjecting him to sexually violative searches and in refusing to provide him with reasonably safe accommodations constituted violations of the applicable Federal, State, and City Human Rights Laws, laws pertaining to gender protection and laws pertaining to the protection of persons with disabilities.

58. That by reason of the aforesaid, the plaintiff was caused to suffer violations of his civil rights, shame, fear, humiliation, and great emotional and mental distress and harm and still suffers and upon information and belief, will continue to suffer great mental pain in the future, and has expended sums of money in an effort to treat himself of said injuries and to extricate himself from the indignities and humiliation foisted upon him by the action of the defendants, their agents, servants and employees, and upon information and belief, will expend further sums in that direction, and that the plaintiff has been otherwise damaged.

59. That by reason of the aforesaid, the plaintiff has been damaged in an amount in excess of the jurisdictional amounts of all lower courts.

FOURTH CAUSE OF ACTION
ASSAULT

60. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1. through 58. with the same force and effect as if more fully and at length set forth herein.

61. The actions of the Defendants in aggressively groping the plaintiff's genitals and chest for their own prurient amusement and curiosity without any legal or lawful purpose and without the plaintiff's consent constituted an assault

62. That by reason of the aforesaid, the plaintiff was caused to suffer violations of his civil rights, shame, fear, humiliation, and great emotional and mental distress and harm and still suffers and upon information and belief, will continue to suffer great mental pain in the future, and has expended sums of money in an effort to treat himself of said injuries and to extricate himself from the indignities and humiliation foisted upon him by the action of the defendants, their agents, servants and employees, and upon information and belief, will expend further sums in that direction, and that the plaintiff has been otherwise damaged.

63. That by reason of the aforesaid, the plaintiff has been damaged in an amount in excess of the jurisdictional amounts of all lower courts.

FIFTH CAUSE OF ACTION
INFLECTION OF EMOTIONAL DISTRESS

64. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1. through 64. with the same force and effect as if more fully and at length set forth herein.

65. That the defendants, the city, the NYPD, and the DOC, knew or should have known that their actions and the actions of their officers and employees in,

inter alia, misgendering the plaintiff, in sexually assaulting the plaintiff, in failing to make reasonable accommodations for the plaintiff, in making sexually inappropriate comments to the plaintiff, would cause any reasonable person to suffer serious and severe emotional distress.

66. By virtue of the foregoing, defendants intentionally inflicted emotional distress upon plaintiff.

67. By virtue of the foregoing, defendants negligently inflicted emotional distress upon plaintiff.

68. As a direct and proximate result of the acts of the defendants, plaintiff suffers and continues to suffer, physical, psychological, and economic injuries.

69. That by reason of the aforesaid, the plaintiff has been damaged in an amount in excess of the jurisdictional amounts of all lower courts.

WHEREFORE, the plaintiff demands judgment against the defendant on the first cause of action in the amount of one million (\$1,000,00.00) dollars, and on the second cause of action in the amount of one million (\$1,000,00.00) dollars and on the third cause of action in the amount of one million (\$1,000,00.00) dollars and on the fourth cause of action in the amount of one million (\$1,000,00.00) dollars and on the fifth cause of action in the amount of one million (\$1,000,00.00) dollars with interest from March 31, 2019, together with the costs and disbursements of this action.

Dated: New York, New York
June 11, 2020

David Blum, Esq.



David Blum & Associates
Attorney for plaintiff
30 Vesey Street 4th Floor
New York, NY 10007
(212) 947-9416 fax (212) 947-0907
david@davidblumnyc.com

